

**JUDGMENT SHEET**  
**IN THE LAHORE HIGH COURT,**  
**RAWALPINDI BENCH, RAWALPINDI**  
JUDICIAL DEPARTMENT

**Criminal Revision No.272 of 2025**

|                  |                                                         |                |
|------------------|---------------------------------------------------------|----------------|
| Shamim Aslam     | Versus                                                  | The State etc. |
| Date of hearing: | 28.10.2025                                              |                |
| Petitioner by:-  | Ms. Masooma Naveed, Advocate with petitioner (on bail). |                |
| State by:-       | Jam Muhammad Tariq, DPG with Qayyum SI.                 |                |
| Complainant by:- | Mr. Mudassar Bashir Awan, Advocate with complainant.    |                |

**SADAQAT ALI KHAN, J.** Petitioner (**Shamim Aslam**) being an accused has been tried by the trial Court in case FIR No.1386 dated 30.11.2024(10.12.2024) offence under section 489-F PPC Police Station Saddar Wah Cantt, District Rawalpindi and was convicted and sentenced vide judgment dated 02.05.2025 as under:-

|               |                                                                                                                                                                                                                                                                                       |
|---------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| u/s 489-F PPC | “Sentenced to <u>simple imprisonment</u> for 3-Years with fine of Rs.20,000/- and in default thereof to further undergo 15-days S.I. with benefit of section 382-B Cr.P.C. Sentence of the petitioner was ordered to run concurrently with other sentence awarded in different case”. |
|---------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

**2.** Appeal filed by the petitioner against his conviction was dismissed by the lower appellate Court vide judgment dated 18.06.2025, hence this criminal revision.

**3.** Allegedly, petitioner issued disputed cheque amounting to Rs.69,00,000/- which was dishonoured on 28.08.2023 on its presentation, by the concerned bank, whereafter FIR was lodged on 30.11.2024(10.12.2024) at 12.05 a.m., with unexplained delay of more than one year on the statement of Muhammad Junaid/Complainant<sup>PW-2</sup> who while appearing before the trial Court stated in his statement as under:-

“Stated that I am resident of Street Malik Misri Khan Nawababad Wah Cantt, Tehsil Taxila. 05 years prior to occurrence, I met with Shamim Aslam, accused present in the Court, R/O Wah Cantt, Tehsil Taxila who purchased

house from me situated at New City Phase-II. In July 2022, accused due to my cordial relations with him asked me that he used to work as Oil distributor. Accused further asked me if I invested capital in his work, I will gain profit. I in different intervals/episodes handed over Rs.69,00,000/- to accused and we become partner in his business of Oil distribution which run till 24.08.2023. We ended our business partnership with our free consent and accused handed over to me cheque bearing No.64507981 amounting to Rs.69,00,000/- Exh.PD for 28.08.2023 JS Bank, F7 Markaz branch, Islamabad. On 28.08.2023, I deposited said cheque in my bank account Faysal Bank Ltd, New City Phase-II Wah Cantt, which was dishonoured due to insufficient funds. Accused with dishonest and fraudulent intention, issued cheque despite the factum that funds are not available in his back account which was dishonoured accordingly. I tried to contact with accused Shamim Aslam and his mobile numbers were switched off. On my inquiry, it came into my knowledge that accused is a dodger person. I moved application Exh.PB alongwith original cheque Exh.PD and dishonour slip at police station and FIR was registered on 30.11.2024 after follow the SOP in this regard. Abdul Qayyum/SI took original cheque alongwith dishonour slip into his possession vide recovery memo Exh.PF attested by me. IO recorded my statement u/s 161 Cr.P.C. Accused person may be given maximum punishment as per law.”

4. Rabia Mashal<sup>PW-1</sup> being Manager Operations of the concerned bank stated before the trial Court that cheque under question had been returned to the complainant due to insufficient balance.

5. Statedly, cheque under question has been issued by the petitioner to the complainant through “*Iqrar Nama*” (Exh.PH) produced by the complainant during trial, which shows that petitioner and complainant were running joint business but neither nature of business nor mode of payment to the petitioner has been detailed therein. No witness has been referred in “*Iqrar Nama*”<sup>PH</sup> before whom complainant on different occasions had paid such and such amount to the petitioner. “*Iqrar Nama*”<sup>PH</sup> contains one marginal witness Arsalan Ahmad who too has not been produced to prove it. Even otherwise, law requires document pertaining to financial or future obligations is to be attested by two men, or one man and two women. In this respect, relevant portion of Article 17 of “The Qanun-e-Shahadat, 1984” is hereby reproduced:-

**17. Competent and number of witness.**

(1) . . . . .

(2) . . . . .

(a) in matters pertaining to financial or future obligations, if reduced to writing, the instrument shall be attested by two men, or one man and two women, so that one may remind the other, if necessary and evidence shall be led accordingly . . .

In these circumstances, complainant has failed to prove that the cheque has been issued by the petitioner towards repayment of loan or fulfillment of an obligation.

**6.** Complainant got registered FIR with unexplained delay of more than one year with dishonest improvements and omissions from the “*Iqrar Nama*”<sup>PH</sup> which shatters his credibility.

**7.** Upon dishonour of the cheque by the concerned bank, aggrieved person has two remedies i.e first to move for the recovery of amount (**mentioned in the cheque**) by filing Civil Suit under Order XXXVII Rule 2 of the Code of Civil Procedure, 1908 in the concerned Court and second is to get registered criminal case against the issuer of the cheque, if was issued dishonestly.

**8.** Admittedly, complainant has not filed any Civil Suit on the basis of disputed cheque for recovery of the amount against the petitioner. Undoubtedly, adverse inference is drawn that nothing is due against the petitioner. Had any amount been due against him, the complainant definitely would have filed suit for recovery of amount on the basis of disputed cheque.

**9.** Complainant only went for registration of the FIR against the petitioner on the basis of disputed cheque in offence under Section 489-F PPC, which is hereby reproduced for ready reference: -

**489-F PPC: -**

“Dishonestly issuing a cheque---Whoever dishonestly issues a cheque towards repayment of a loan or fulfilment of an obligation which is dishonoured on presentation, shall be punishable with imprisonment which may extend to three years, or with fine, or with both, unless he can establish, for which the burden of proof shall rest on him, that he had made arrangements with his bank to ensure that the cheque would be honoured and that the bank was at fault in not honouring the cheque.”

**10.** Offence under Section 489-F PPC attracts only when the following conditions are fulfilled and proved by the prosecution,

- (i) issuance of cheque;
- (ii) such issuance was with dishonest intention;
- (iii) the purpose of issuance of cheques should be: -
  - (a) to repay a loan; or
  - (b) to fulfil an obligation (which in wide term inter alia applicable to lawful agreements, contracts, services, promises by which one is bound or an act which binds person to some performance).
- (iv) on representation, the cheque is dishonoured.

**11.** Every transaction where a cheque is dishonoured does not constitute an offence unless necessary ingredient of the provision of Section 489-F PPC i.e dishonestly issuing of a cheque towards repayment of a loan or fulfilment of an obligation has been proved before the learned trial Court by the prosecution. In the present case, complainant has failed to prove such necessary ingredient beyond shadow of doubt. It is settled principle of law that for giving benefit of doubt, it is not necessary that there should be many circumstances creating doubt. If there is a circumstance which creates reasonable doubt in the prudent mind about the guilt of the accused, then he would be entitled to its benefit not as a matter of grace or concession but as of right.

**12.** For the foregoing reasons, instant criminal revision filed by petitioner (**Shamim Aslam**) is accepted, his conviction and sentences awarded by the Courts below vide impugned judgments are hereby set aside. He is acquitted of the charges. Petitioner is present on bail, his surety stands discharged.

**(SADAQAT ALI KHAN)**  
JUDGE

Approved for reporting

JUDGE